

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FEI XIAO,

Petitioner

VS.

DEXIONG ZHAO,

Respondent

) Case Number: FDV-25-818802

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

NOTICE OF HEARING (DOMESTIC VIOLENCE)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Dexiong Zhao (Mother) and Respondent Fei Xiao (Father). They share one minor child: Yucheng Xiao (DOB: 11/07/24).
- 2) On December 8, 2025, Mother filed a Request for Domestic Violence Restraining Order (DVRO) asking for various orders, including of child custody and visitation orders. Within Mother's request for a DVRO, she indicates that "I intend to return to the United States with our daughter...." She further states in her declaration: "I have no intention of staying in China long-term."
- 3) On January 28, 2026, the Court heard Mother's request for DVRO, which was denied as and the Court did not find a sufficient basis for granting a DVRO. The Court ordered that Mother and Father shall share joint legal and physical custody of the minor child. The Court also ordered Mother to return the child to the United States. Mother asserted, for the first time, that California did not have Jurisdiction over child custody issues. The Court continued the matter until February

1 17, 2026 and ordered both parents to serve and file additional declarations regarding the time
2 period when their child was present in the United States.

3 4) On February 2, 2026, Father filed a declaration stating he did not consent to the child remaining
4 in China and confirmed that the child was only to be in China on a temporary basis.

5 5) At the prior February 17, 2026 hearing, the parties met and conferred and reached a stipulated
6 agreement, which did not resolve the issues before the Court. In particular, the parties agreed as
7 follows:

8 a. The Court vacates the order to return the minor child, Yucheng Xiao to California.

9 b. The hearing regarding jurisdiction shall be continued for 60 days to April 21, 2026, at
10 9:00 a.m., in Department 403.

11 c. The parties shall meet and confer regarding Respondent/Father's visitation schedule.

12 d. The parties do not agree over the issue of California Court's jurisdiction.

13 e. 10 days before the next hearing, Petitioner/Mother shall file with the Court a declaration
14 and a memorandum of points and authorities on her position opposing California Court's
15 jurisdiction over the minor child, Yucheng Xiao.

16 f. If Respondent/Father wishes, he may file his own declaration and shall do so 10 days
17 before the next hearing.

18 6) Mother did not file any declaration, nor any memorandum of points and authorities.

19 **B. Findings and Order**

20 1) The Court finds that California has jurisdiction to make child custody orders in this case under the
21 Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject
22 the party in violation to civil or criminal penalties, or both. The country of habitual residence of
23 the minor child is the United States.

24 2) The Court confirms its prior order that both parents shall share joint legal and joint physical
25 custody of the minor child, Yucheng Xiao (11/07/24).

26 3) Mother is ordered to return the minor child, Yucheng Xiao (11/07/24) to Father's care and
27 custody in San Francisco, California, United States of America no later than 5:00 p.m. on May 1,
28 2026.

29

1 4) **A review hearing is set on 05/06/26 at 9:00 a.m. in Dept. 403** for the purpose of (a) ensuring
2 that Mother complied with the Court's order requiring the return of the minor child; and (b)
3 determining a parenting plan, if one is needed.

4 5) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.

5 6) The Court will prepare the Findings and Order After Hearing.
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29